



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

DEC 19 2001

DOT-E 12702

EXPIRATION DATE: November 30, 2003

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Los Crespos Cylinders, Inc.
Anasco, Puerto Rico
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the rebuilding and selling of DOT Specification 4B, 4BA, and 4BW cylinders for use in the transportation in commerce of the hazardous materials authorized in paragraph 6 below. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: The marking requirements specified in §§ 172.203(a) and 172.301(c); § 173.34(1), (1), (2), (3). This does not relieve the holder of this exemption from securing an approval for rebuilding cylinders from the Associate Administrator for Hazardous Materials Safety.
5. BASIS: This exemption is based on the application of Los Crespos Cylinders, Inc. dated March 11, 2001, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

DEC 19 2001

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Compressed gases, flammable liquids, corrosives, and other hazardous materials authorized for shipment in DOT 4B, 4BA, and 4BW cylinders per 49 CFR Part 173.	As appropriate	As appropriate	As appropriate

7. SAFETY CONTROL MEASURES: This exemption authorizes the rebuilding and selling of low-pressure, DOT Specification 4B, 4BA and 4BW, steel cylinders in accordance with the following:
- Only cylinders originally manufactured to a DOT Specification 4B, 4BA and 4BW may be rebuilt and represented as DOT 4B, 4BA or 4BW cylinders, respectively.
 - A rebuilding work must be performed in accordance with the approved Procedures Manual on file in the Approvals Branch and § 173.34(1).
 - Rebuilder must be considered a manufacturer subject to the requirements of § 178.2(a) and Subpart C of Part 178.
 - After removal of a non-pressure component and before replacement of any non-pressure component, the cylinder must be visually inspected in accordance with the requirements of CGA Pamphlet C-6. Rejected cylinders must be repaired and rebuilt as prescribed in § 173.34(i) or (j), or condemned.
 - Rebuilding of any cylinder involving a joint subject to internal pressure may only be performed by fusion welding. The rebuilder may rebuild a DOT 4B, 4BA or 4BW cylinder having a water capacity of 20 pounds or greater by replacing a head of the cylinder using a circumferential joint. When this weld joint is located at other than an original welded joint, a notation of this modification must be shown on the Manufacturer's Report of Rebuilding (see Appendix A). Weld joint must be on the cylindrical section of the cylinder.

f. Welding must be:

DEC 19 2008

- (1) Performed in accordance with the procedures and qualification requirements of CGA Pamphlet C-3.
- (2) Performed using welding rods compatible with the material of the cylinder including any non-pressure component.
- (3) Performed on an area free of any contaminant.

g. Each rebuilt cylinder must be:

- (1) Heat treated as required in the applicable specification.
- (2) Subjected to a full hydrostatic volumetric expansion test as specified in the applicable cylinder specification in Part 178. The results of the tests must conform to the requirements of the applicable cylinder specification.
- (3) Inspected and have test data reviewed to determine conformance with the applicable cylinder specification.
- (4) Made of material in conformance with the specification. Rebuilt cylinders are to be grouped into lots as required in the original specification and heat treated as noted in paragraph (1) above. Each new lot of cylinders must include chemical analysis, verification, inspection and tensile testing of only the replaced part and weldments required to affect the rebuilding. Components used in the original manufacture are accepted as meeting the requirements of the specification subject to acceptable performance of the full expansion test required in paragraph (2) above.

h. A record of rebuilding, in the format presented in Appendix A, must be completed for each rebuilt cylinder.

i. A copy of the reports of rebuilding must be maintained by the rebuilding facility for at least 15 years.

DEC 19 2001

8. SPECIAL PROVISIONS:

a. The marking requirements of §§ 172.203(a) and 172.301(c) are waived.

b. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft only, and passenger-carrying aircraft.

10. MODAL REQUIREMENTS: None as a requirement of this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

Continuation of DOT-E 12702

DEC 19 2001

Page 7

I Certify that this rebuilt cylinder is accurately represented by the data above and that all provisions of DOT-E 12702 and other applicable regulations have been complied with.

Repair Technician _____ Date _____

Company Representative _____ Date _____